



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36175825

Date: JAN. 13, 2025

Motion on Administrative Appeals Office Decision

Form I-140, Immigrant Petition for Alien Workers (Multinational Managers or Executives)

The Petitioner, a provider of planning services for weddings and other events, seeks to employ the Beneficiary as its general manager. It requests his classification under the employment-based, first-preference immigrant visa category as a multinational executive. *See* Immigration and Nationality Act (the Act) section 203(b)(1)(C), 8 U.S.C. § 1153(b)(1)(C).

The Director of the Texas Service Center denied the petition, concluding that the Petitioner did not establish it would employ the Beneficiary in an executive capacity as claimed. We dismissed the Petitioner's subsequent appeal on the same grounds. We further observed that the record before us on appeal did not demonstrate, as required, that the Petitioner has a qualifying relationship with the Beneficiary's foreign employer. The matter is now before us on combined motions to reopen and reconsider.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). Upon review, we will dismiss the motions.

A motion to reconsider must establish that our prior decision was based on an incorrect application of law or policy and that the decision was incorrect based on the evidence in the record of proceedings at the time of the decision. 8 C.F.R. § 103.5(a)(3). A motion to reopen must state new facts and be supported by documentary evidence. 8 C.F.R. § 103.5(a)(2). We may grant motions that satisfy these requirements and demonstrate eligibility for the requested benefit. *See Matter of Coelho*, 20 I&N Dec. 464, 473 (BIA 1992) (requiring that new evidence have the potential to change the outcome).

The scope of a motion is limited to "the prior decision" and "the latest decision in the proceeding." 8 C.F.R. § 103.5(a)(1)(i), (ii). In this case, the most recent decision is our October 1, 2024, decision dismissing the Petitioner's appeal.

While the Petitioner has submitted a brief on motion, most of it is copied nearly verbatim from the brief it submitted in support of its appeal. The brief references the Director's decision but does not discuss the specific conclusions we reached in our appellate decision with respect to the Beneficiary's proposed employment capacity in the United States. As such, the Petitioner's contentions in its current

motion merely repeat the facts and issues we have already considered in our previous decision. *See e.g., Matter of O-S-G-*, 24 I&N Dec. 56, 58 (BIA 2006) (“a motion to reconsider is not a process by which a party may submit, in essence, the same brief presented on appeal and seek reconsideration by generally alleging error in the prior Board decision”).

Because the Petitioner has not directly addressed our decision dismissing the appeal, it has not stated any specific reasons for reconsideration of that decision, nor has it claimed or demonstrated that our prior decision was based on an incorrect application of law or policy, as required by 8 C.F.R. § 103.5(a)(3). Accordingly, the Petitioner has not met the requirements for a motion to reconsider. Further, the Petitioner has not submitted new facts, supported by documentary evidence, relating to the Beneficiary’s proposed employment capacity in the United States. We will not re-adjudicate the petition anew and, therefore, the underlying petition remains denied.

Although not addressed in the Director’s decision, we informed the Petitioner in our prior decision that the record contained insufficient evidence to demonstrate the claimed parent-subsidiary relationship between the Beneficiary’s foreign employer and the Petitioner.¹ Because the Director did not provide notice of these evidentiary deficiencies, we advised the Petitioner that it should submit additional evidence of the claimed qualifying relationship in any future filings.

Specifically, we noted that while the Petitioner claimed to be a wholly owned subsidiary of the Beneficiary’s former foreign employer, the record contained copies of the Petitioner’s federal income tax returns for 2017, 2020 and 2021, all of which identified the Beneficiary, and not the foreign employer, as the Petitioner’s sole owner. We also observed that, while the Petitioner submitted a copy of a stock certificate it purportedly issued to the foreign employer, the certificate did not state “[t]he number and class of shares” as required by the laws of Washington State, where the Petitioner is domiciled. *See* Wash. Rev. Code § 23B.06.250(2)(c).

On motion, the Petitioner claims that it is an affiliate of the foreign entity, based on common ownership and control of both entities by the same group of three individuals. *See* 8 C.F.R. § 204.5(j)(2) (defining “affiliate,” in part, as “one of two legal entities owned and controlled by the same group of individuals, each in individual owning and controlling approximately the same share or proportion of each entity”).

Despite this new claim of an affiliate relationship between the U.S. and foreign entities, the Petitioner submits an affidavit from the Beneficiary, who states that the petitioning company is “owned and controlled by the parent Indian company.” He further states that “[n]otwithstanding the subject tax returns reflect that I am the sole owner of [the Petitioner],” the “actual owners” are the three individuals who own the foreign entity. The Petitioner re-submits a copy of the foreign entity’s deed of partnership demonstrating its ownership by the three individuals named in the Beneficiary’s affidavit. However, this evidence does not sufficiently address or overcome the deficiencies addressed in our prior decision.

¹ A petitioner seeking to classify a beneficiary as a multinational manager or executive must show that it is the same entity as, or a subsidiary or affiliate of the beneficiary’s foreign employer. *See* section 203(b)(1)(C) of the Act; 8 C.F.R. § 204.5(j)(3)(i)(C).

The Petitioner acknowledges that it previously submitted federal income tax returns identifying the Beneficiary as its sole shareholder. The Beneficiary's statement suggests that the ownership information the Petitioner provided in its tax returns was incorrect, but the motion does not include evidence demonstrating that the Petitioner has, for example, sought to file amended tax returns. Further, it is unclear based on the statements made on motion whether the Petitioner now claims an affiliate relationship with the foreign entity based on common ownership by the same individuals, or whether it is maintaining its previous claim that it is wholly owned by the Indian entity. Finally, the brief and evidence submitted on motion do not address our concerns regarding the validity of the stock certificate purportedly issued to the foreign entity. Therefore, the record as presently constituted does not demonstrate the claimed qualifying relationship between the Petitioner and the Beneficiary's foreign employer.

Although the Petitioner has submitted additional evidence in support of the motion to reopen, it has not established eligibility. On motion to reconsider, the Petitioner has not established that our previous decision was based on an incorrect application of law or policy at the time we issued our decision. Therefore, the motions will be dismissed. 8 C.F.R. § 103.5(a)(4).

ORDER: The motion to reopen is dismissed.

FURTHER ORDER: The motion to reconsider is dismissed.